

25STCV28299 25STCV28299

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-23

Motion: DEFENDANTS' DEMURRER AND MOTION TO STRIKE

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Case Number: 25STCV28299 Hearing Date: September 23, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DELIA

CARIAS RUANO, an individual; JORGE LUIS GONZALEZ CARIAS, an individual;
MITZY DAYANA MEDINA CARIAS, an individual; and GIANNA ESMERALDA MEDINA
CARIAS, by and through her Guardian ad Litem Mitzy Dayana Medina Carias,

Plaintiffs,

vs.

GROUP IX BP PROPERTIES, LP, a California limited
partnership; LEGACY MANAGEMENT, an unknown business entity, and DOES 1- 20
inclusive,

Defendants.

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CASE

NO.: 25STCV28299

[TENTATIVE] ORDER RE: DEFENDANTS'
DEMURRER AND MOTION TO STRIKE

Dept. 733

8:30 a.m.

September 23, 2026

I.

INTRODUCTION

This case arises
from alleged habitability issues 670 Erie St., Apt 12, Pomona, CA 91768,

("the Property") during the tenancy
of Plaintiffs Delia Carias Ruano, Jorge Luis Gonzalez Carias, Mitzy Dayana
Medina Carias, and Gianna Esmeralda Medina Carias ("Plaintiffs").

On

September 29, 2025, Plaintiffs filed a complaint against Defendants Group IX BP
Properties, LP ("GP") and Legacy Management ("Legacy") ("Defendants"), alleging
causes of action for (1) Breach of the Implied Warranty of Habitability, (2)

Negligence, (3) Intentional Infliction of Emotional Distress, (4) Private Nuisance, (5) Violation of Civil Code section 1942.4 and (6) Violation of Business and Professions Code § 17200.

On

May 8, 2026, Defendants filed the instant demurrer and motion to strike.

On

September 10, 2026, Plaintiffs filed oppositions.

On

September 16, 2026, Defendants filed replies.

II.

LEGAL STANDARD

Demurrer

A demurrer is an

objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice.

(Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985)

39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (*Postley v. Harvey* (1984)

153 Cal.App.3d 280, 286.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a

view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The

court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . .” (*Berkley*

v. Dowds (2007) 152 Cal.App.4th 518, 525.)

When a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18

Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a

pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015)

244 Cal.App.4th 118, 226.)

Motion to Strike

Any party, within the time allowed to

respond to a pleading may serve and file a notice of motion to strike a pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

III.

DISCUSSION

Demurrer

Defendants

demur to the first, third and fifth causes of action for Breach of the Implied Warranty of Habitability, Intentional Infliction of Emotional Distress, and Violation of California Civil Code section 1942.4.

On September 14, 2026, Plaintiffs filed to dismiss their fifth cause of action for Violation of Civil Code section 1942.4, which the Court Clerk entered the next day. Thus, the demurrer is denied as moot as to this cause of action.

A. First

Cause of Action: Breach of the Implied Warranty of Habitability

"[A] warranty of habitability is implied by law in residential leases." (Green v. Superior Court (1974) 10 Cal.3d 616, 637.) To establish a breach of the implied warranty of habitability, Plaintiffs must establish (1) "the existence of a material defective condition affecting the premises' habitability," (2) "notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition," (3) "the landlord was given a reasonable time to correct the

deficiency, and” (4) “resulting damages.” (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1297.)

Here, Plaintiffs clearly allege the existence of defective conditions, such as “chronic water leaks which have cause excessive mold growth and exacerbated [] vermin infestations” and “stained and water damaged ceilings, crumbling walls, inoperable heaters, cracked and deteriorated floors, broken or deteriorated cabinets, wood rot[.]” (Compl., ¶ 11(a)-(b).)

However, Plaintiffs have not alleged any timeline or other facts as to when they gave Defendants notice of the alleged defects and how much time Defendants were given to correct them. Plaintiffs solely allege in conclusory and otherwise vague language that “Defendants had actual and/or constructive notice of the following defects yet failed to take timely or reasonable steps to abate and/or remedy the defects” and “Plaintiffs repeatedly informed Defendants and their agents of the defects outlined above[.]” This is deficient. (Compl., ¶¶ 11, 24; see Peterson v. Superior Ct. (1995) 10 Cal.4th 1185, 1205 (citation omitted) [“The landlord’s repair covenant is (or at least should be) breached only if the landlord fails to fix a problem within a reasonable period after notice. It is the landlord’s inaction—the landlord’s negligence—that gives rise to liability.”].)

The demurrer to the first cause of action is sustained.

B. Third

Cause of Action Intentional Infliction of Emotional Distress (IIED)

“The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

In *Stoiber*, the Court held that “that the availability of a remedy for breach of implied warranty of habitability does not preclude a tenant from suing his landlord for intentional infliction of mental distress if the landlord’s acts are extreme and outrageous and result in severe mental distress.” (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 922.) Here, as stated above, Plaintiffs allege that there were “chronic water leaks which have cause excessive mold growth and exacerbated [] vermin infestations” and “stained and water damaged ceilings, crumbling walls, inoperable heaters, cracked and deteriorated floors, broken or deteriorated cabinets, wood rot[.]” (Compl., ¶ 11(a)-(b).)

However, also as stated above, Plaintiffs have not sufficiently alleged that Defendants were on proper notice of the defects and thus, there are no allegations that support whether Defendants’ conduct was willful. Without sufficient allegations of willfulness or intention to cause Plaintiffs emotional distress, Plaintiffs’ IIED cause of action fails, as it is an intentional tort. (See *Fisher v. Fisher* (2026) 118 Cal.App.5th 899, 917 (citation omitted) [“California cases have been in accord with [earlier versions of the Restatement] in allowing recovery where physical injury resulted from intentionally subjecting the plaintiff to serious mental distress.”].)

The demurrer to the third cause of action is sustained.

Motion to Strike

Given that the Court sustained Defendants’ demurrer in its entirety, the motion to strike is denied as moot.

IV.

CONCLUSION

Based on the foregoing,

Defendants’ demurrer is DENIED as moot as to the fifth cause of action.

The demurrer is

SUSTAINED as to the first and third causes of action, with thirty (30) days
leave to amend.

The motion to strike is DENIED as moot.

Dated this 23rd
day of September 2026

Hon. Gary

D. Roberts

Judge
of the Superior Court